



Order under Section 21.2 of the Statutory Powers Procedure Act and the Residential Tenancies Act, 2006

Citation: RIVERSIDE DEVELOPMENTS c/o STERLING KARAMAR PROPERTY MANAGEMENT v AKTAS, 2025 ONLTB 97699

Date: 2025-12-18 **File Number:**
LTB-L-024481-25-RV

In the matter of: 302, 3801 RIVERSIDE DR E WINDSOR
ON N8Y1B2

Between: RIVERSIDE DEVELOPMENTS c/o STERLING KARAMAR Landlord
PROPERTY MANAGEMENT

And

GUL (ROSE) AKTAS Tenant

Review Order

RIVERSIDE DEVELOPMENTS c/o STERLING KARAMAR PROPERTY MANAGEMENT (the 'Landlord') applied for an order to terminate the tenancy and evict GUL (ROSE) AKTAS (the 'Tenant') because: • the Tenant, another occupant of the rental unit or someone the Tenant permitted in the residential complex has willfully or negligently caused damage to the premises.

The Landlord also claimed compensation for each day the Tenant remained in the unit after the termination date.

The Landlord also applied for an order requiring the Tenant to pay the Landlord's reasonable out-of-pocket costs the Landlord has incurred or will incur to repair or replace undue damage to property. The damage was caused wilfully or negligently by the Tenant, another occupant of the rental unit or someone the Tenant permitted in the residential complex.

This application was resolved by order LTB-L-024481-25 issued on November 10, 2025.

On December 18, 2025, the Tenant requested a review of the order.

A preliminary review of the review request was completed without a hearing.

Determinations:

1. This review request is made on the grounds of serious error and of being not reasonably able to participate in the proceedings.

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2. The hearing that gave rise to the order under review took place on August 7, 2025. The Tenant did not attend and no representative attended on behalf of the Tenant.
3. In the review request the Tenant does not offer any explanation as to why they did not attend the hearing.
4. The Tenant submits that the repair cost claimed by the Landlord is too high and the Tenant cannot afford to pay it. These are submissions that the Tenant ought to have made at the hearing. However, the Tenant did not attend the hearing and the Tenant's failure to attend is not explained in the review request (or the request to extend time).
5. Paragraph "e" of Rule 26.8 of the Board's Rules of Procedure states that a request to review an order must provide sufficient information to support a preliminary finding of an alleged serious error or an explanation why the requestor was not reasonably able to participate in the hearing. The Tenant has not provided sufficient information to support a preliminary finding that they were not reasonably able to participate in the hearing.
6. It was not a serious error for the Board to fail to consider submissions or evidence that were not given at the hearing
7. On the basis of the submissions made in the request, I am not satisfied that there is a serious error in the order or that a serious error occurred in the proceedings or that the Tenant was not reasonably able to participate in the proceeding.

It is ordered that:

1. The request to review order LTB-L-024481-25 issued on November 10, 2025 is denied. The order is confirmed and remains unchanged.

December 18, 2025

Date Issued

Renée Lang

Vice Chair, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor
Toronto ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

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